

SECURITY-SERVICES AGREEMENT
TERMS AND CONDITIONS

1. **Services to Be Performed by Service Provider.** Solely to the extent indicated on the first page of this Agreement, Service Provider shall provide the following Services to Customer, subject to the terms and conditions herein:
 - a. **Community-Based Roving Patrol Tours.** Service Provider shall perform Community-Based Roving Patrol Tours, which shall consist of roving vehicle patrols of Customer's Location(s), manned by unarmed uniformed security officers, performed in accordance with the times, Location(s), and frequencies specified on the first page of this Agreement. Officers performing such tours shall (i) evaluate the Location(s) for criminal activity, vandalism, disorderly conduct, loitering or other nuisance behavior, lighting conditions and sprinkler operations; (ii) enforce parking and other of Customer's regulations for use of the Location(s); and (iii) conduct random foot patrols to check gates, doors, windows, or lights at Customer's Location(s).
 - b. **Community-Based Dedicated Roving Patrol Tours.** Service Provider shall provide Community-Based Dedicated Roving Patrol Tours, which shall consist of Community-Based Roving Patrol Tours described above, dedicated exclusively to the Location(s) specified on the first page of this Agreement.
 - c. **Armed Dedicated Roving Patrol Tours.** Service Provider shall provide Armed Dedicated Roving Patrol Tours, which shall consist of the services described as Community-Based Dedicated Roving Patrol Tours above, but shall be performed by armed law enforcement personnel or licensed and trained armed civilian security officers.
 - d. **Dedicated Community-Based Security Services.** Service Provider shall provide Dedicated Community-Based Security Services, which shall consist of having unarmed uniformed officers manning security desks designated by Customer and conducting camera patrols via closed circuit television, if applicable, and/or foot patrols, in order to monitor the perimeter of the Location(s). The officers shall also provide escorts for employees, tenants, and customers as requested; conduct interior and exterior lighting and sprinkler assessments; respond to alarms; enforce parking and other of Customer's regulations for use of the Location(s); and use reasonable efforts to ban and bar individuals from the premises as directed by Customer.
 - e. **Dedicated Armed Security Services.** Service Provider shall provide Dedicated Armed Security Services, which shall consist of the Dedicated Community-Based Security Services described above, but shall be performed by armed law enforcement personnel or licensed and trained civilian security officers.
 - f. For all Services indicated on the first page of this Agreement, Service Provider shall (i) regularly post activity reports, noting the name of the security guard posting the report, the time of the report, the Location(s) patrolled, and any unusual incidents or hazardous conditions observed; (ii) provide Customer with secure access to such reports; and (iii) cooperate with investigations concerning incidents of criminal activity, provided that Customer shall compensate Service Provider for time spent by Service Provider with respect to such investigations, at the rates on the first page of this Agreement. All posted activity reports will be kept on file with Service Provider for at least five years, but may thereafter be destroyed consistent with Service Provider policy. Customer may request copies of such reports at any time before the expiration of such period and may arrange the delivery of such reports, at Customer's sole cost and expense.
 - g. If an incident occurs requiring the Customer's immediate attention, Service Provider shall notify Customer as soon as practicable after learning of the incident by calling the Emergency Contact listed on the first page of this Agreement or such other persons as Customer may from time to time designate in writing to Service Provider.
2. **Representations and Warranties.** Each party covenants and warrants to the other that: (i) it is an entity duly formed, validly existing and in good standing under the laws of its jurisdiction of formation; (ii) it has the power and capacity to enter into, execute and perform its obligations under this Agreement in accordance with the terms and provisions hereof; and (iii) the execution and delivery of this Agreement have been duly authorized by all proper corporate action.
3. **Security Standards.** Service Provider agrees that the Services covered by this Agreement shall be performed in accordance with generally accepted security practices and standards in the industry. If Customer requests that Service Provider perform Services that requires knowledge or training particular to Customer or Customer's business, Customer will provide such necessary training Service Provider employees at no cost to the Service Provider. If any specialized tools are required to perform the Services, Customer will loan such specialized tools at no cost to Service Provider. Upon completion of the Services, Service Provider shall return all loaned tools to Customer in the condition in which they were received, less normal wear and tear.
4. **Duties of Customer.** The purpose of any inspection at Customer's location(s) by Service Provider is solely to assist Customer with its security programs. The safe maintenance of Customer's premises and operations and equipment on those premises and the avoidance of unsafe conditions and practices is the sole responsibility of Customer. In support

of the Services to be provided under this Agreement, Customer shall, at its expense, make adequate provision for the following: (i) advising Service Provider of any and all hazards at the Location(s) and dangerous activities being conducted at the Location(s); (ii) maintaining the Location(s) free from unreasonable hazards and unreasonably dangerous activities; and (iii) providing training to all of Customer's employees and contractors as to the nature of Service Provider's operations at the Location(s) and as to such other matters as may be reasonably requested by Service Provider and/or necessary in order to allow Service Provider to perform the Services.

5. Compliance with Laws.

- a. Some or all of the Services identified in this Agreement could be designated as a Qualified Anti-terrorism Technology ("QATT") under the Support Anti-terrorism by Effective Technologies (SAFETY") Act of 2002, 6 U.S.C. §§ 441-444, as amended. Where this QATT has been deployed in defense against, response or recovery from an act of terrorism, as that latter term is defined under the SAFETY Act (as herein defined), Service Provider and Customer agree to waive all claims against each other, including their professionals, directors, agents or other representatives, arising out of the manufacture, sale, use or operation of the QATT, and further agree that each is responsible for losses, including business interruption losses, that it sustains, or for losses sustained by its own employees resulting from an activity arising out of such act of terrorism. This provision shall apply throughout the term of this Agreement, regardless of whether Service Provider should cease to have SAFETY Act coverage for these Services for any reason.
- b. Customer shall, at its own cost and expense, comply in full with all applicable federal, state, provincial, and local statutes, laws, ordinances, rules regulations, orders, licenses, permits or fees ("Governmental Regulations") applicable to its operations and its performance under this Agreement, including without limitation, (i) environmental laws; (ii) laws relating to accessibility by and accommodation of handicapped persons; and (iii) laws relating to discrimination of any type of manner. Customer shall notify Service Provider in writing within forty-eight (48) hours of any inquiry, notice, subpoena, lawsuit, or other evidence of an investigation by any public agency or the commencement of any judicial or administrative litigation, or arbitration proceedings with respect to Service Provider's operations at the property and/or performance under this Agreement. Should Service Provider be issued a citation or other sanction because of conditions on the premises created by others, Customer shall pay and will be responsible for the fine. The foregoing shall include, but not be limited to, all applicable health, safety, and labor standards.

6. **Payment.** For the Services Service Provider provides hereunder, Customer agrees to pay Service Provider according to the rates set forth on the first page of this Agreement. Franchisor shall submit an invoice to Customer according to the schedule selected on the first page of this Agreement, but no less often than monthly. Customer shall remit payment in full for each invoice within fifteen (15) days after the date of such invoice. In the event that Customer should fail to make payment in full of any invoice when due, the amount due under such invoice shall bear interest at the rate of one and one-half percent (1½ %) per month, or the highest rate allowed by law, whichever is less. Customer shall be liable to Franchisor for all costs of enforcing the terms of this Agreement, including but not limited to attorney's fees.

7. Price Changes and Fuel Surcharges.

- a. Service Provider may increase prices for Services or impose a fuel surcharge from time to time by giving notice to the Customer either in writing or by notation on a statement of account. If it objects to the changed price or fuel surcharge, Customer shall notify the Franchisor and Service Provider in writing within thirty (30) days after the date of first notification of the change or surcharge. In the absence of such objection, the price change shall be deemed accepted by the Customer and shall be considered by the parties as a binding modification to this Agreement, and this Agreement, as so modified, shall remain in full force and effect. If the Customer timely objects, then the Service Provider reserves the right to continue this Agreement in full force and effect without any price changes or fuel surcharge.
- b. In addition to the foregoing, in the event that Service Provider experiences an increase in its costs resulting from any change, whether or not anticipated, in: (1) Federal, state, provincial, territorial, or local taxes, levies, or required withholdings imposed or assessed on amounts payable to and/or by Service Provider hereunder or by or in respect of Service Provider to its personnel; (2) Federal, state, provincial, territorial, or local minimum wage rates, mandated paid time off and/or sick leave, changes in overtime wage regulations, uniform maintenance expenses or other required employee allowances, licensing fees and/or requirements, or wage, medical, welfare and other benefit costs under collective bargaining agreements; (3) costs related to insurance and/or workers' compensation; and/or (4) costs related to medical and/or welfare benefits and other requirements, including without limitation costs incurred by Service Provider pursuant to applicable federal, state and/or local law, including, without limitation "Healthcare Reform Legislation Costs" (as defined below), the billing rates shall be increased by a percentage equal to the percentage increase in Service Provider's costs resulting from the items set forth in this paragraph. Service Provider will provide Customer notice of such change in the Billing Rates. Notwithstanding anything contained in this Agreement to the contrary, Service Provider may pass through the costs set forth in this section to Customer as incurred or accrued and Customer shall pay Service Provider for

such costs. "Healthcare Reform Legislation Costs" means the costs and/or assessments incurred by Service Provider in respect of employee medical and/or welfare benefits and other requirements under the applicable provincial, federal or local statutes and/or regulations.

8. **Term.** The term of this Agreement shall commence on the Start Date, and shall continue until the End Date, unless sooner terminated pursuant to Section 8 of this Agreement.

9. **Termination, Remedies.**

- a. This Agreement may be terminated by either party at any time in the event of a breach or a failure to comply with any covenant, term, or condition of this Agreement, but only after the non-breaching party has provided written notice of such breach or failure to comply and the same remains uncured for (i) fifteen (15) days after the non-breaching party gives such notice in the event of nonpayment of amounts due hereunder; or (ii) thirty (30) days after non-breaching party gives such notice in the event of any other breach hereunder.
- b. Either party may terminate this Agreement for any reason upon providing a written thirty (30) days' notice to the other party.
- c. In the event that Customer (i) should breach Section 4 of this Agreement; (ii) should breach any other covenant or obligation hereunder (other than failure to pay amounts due hereunder) and should fail to cure any such breach within fifteen (15) days after the non-breaching party gives notice of said breach; or (iii) should fail to pay any amounts it owes Service Provider within thirty (30) days after the applicable invoice date, then Service Provider may, in addition to any other remedy it may have by contract, at law or in equity, immediately cease performing Services hereunder.

10. **Insurance.**

- a. Service Provider shall maintain at all times during the term of this Agreement general liability insurance in occurrence form covering its activities hereunder with an insurance company or companies qualified to write such insurance in the state of Service Provider, with limits of not less than One Million Dollars (\$1,000,000.00) per occurrence and Three Million Dollars (\$3,000,000.00) in the aggregate. Customer shall be named as an additional insured under each such policy. Copies of all such policies of insurance (or Certificates therefore) maintained by Service Provider shall be delivered to Customer upon Customer's request.
- b. Customer shall maintain at all times during the term hereof general liability insurance in occurrence form with an insurance company or companies qualified to write such insurance in the state(s) where the Location or Locations, as the case may be, are located, with limits not less than One Million Dollars (\$1,000,000) per occurrence and Three Million Dollars (\$3,000,000) in the aggregate. Service Provider and Franchisor shall be named as an additional insured under each such policy. Copies of all such policies of insurance (or Certificates therefore) maintained by Customer hereunder shall be delivered to Service Provider and Franchisor immediately upon issuance by the insurer.
- c. All policies of insurance required to be maintained by a party hereunder shall be renewed (and policies or certificates, together with evidence of payment of premiums, delivered to the other party immediately upon issuance by the insurer) at least thirty (30) days prior to the respective expiration dates of such policies.
- d. All of a party's policies of insurance described in Section 9 of this Agreement shall contain an endorsement requiring the insurer to give notice to the other party at least thirty (30) days prior to any cancellation, termination or amendment of the insurance policy.

11. **Cooperation in the Event of a Claim.** In the event that either party becomes aware of any alleged claim of injury or damage arising out of the performance of the Services, such party shall give the other party written notice within two (2) business days thereafter, stating the details of the incident sufficient to identify, if possible, the persons involved, the location and circumstances of the incident, and the names, addresses, and telephone numbers of available witnesses. Failure to provide such notice in a timely manner shall not result in liability to the party obligated to provide notice, except to the extent that such failure results in damage to the party entitled to receive such notice. The parties shall cooperate with one another in good faith in the handling of such claims, including any lawsuits or other proceedings, and in enforcing any right of contribution or indemnity.

12. **Limitation of Liability.**

- a. CUSTOMER ACKNOWLEDGES THAT SERVICE PROVIDER IS NOT AN INSURER AND THAT THE AMOUNTS PAYABLE TO SERVICE PROVIDER UNDER THIS AGREEMENT ARE BASED STRICTLY UPON THE VALUE OF THE SERVICES PROVIDED AND ARE UNRELATED TO THE VALUE OF PROPERTY AT THE SERVICES SITE(S). THE PARTIES ACKNOWLEDGE AND AGREE THAT SERVICE PROVIDER'S SERVICES DO NOT CAUSE AND CANNOT PREVENT THE TYPES OF OCCURRENCES (e.g., criminal break-ins, unauthorized intrusions, etc.), OR THE CONSEQUENCES ARISING THEREFROM (e.g., theft, vandalism, property loss, personal injury), WHICH THE SERVICES ARE OR MAY BE INTENDED TO DETECT (such occurrences hereafter, "DETECTION EVENTS"). IN THE EVENT OF INJURY, DEATH, LOSS, DESTRUCTION OR DAMAGE TO PERSONS OR PROPERTY AT THE SERVICES SITE, HOWEVER CAUSED

(EXCEPT FOR DIRECT DAMAGE CAUSED BY SERVICE PROVIDER'S EMPLOYEES AND AGENTS AT OR IN TRANSIT TO A SERVICES SITE), ARISING OUT OF, OR IN CONNECTION WITH A DETECTION EVENT, SERVICE PROVIDER'S ENTIRE LIABILITY, IN CONTRACT (INCLUDING ANY BREACH OF A FUNDAMENTAL TERM OR FUNDAMENTAL BREACH), TORT (INCLUDING NEGLIGENCE) OR OTHERWISE SHALL BE LIMITED TO \$2,500.00, AS AGREED UPON DAMAGES AND NOT AS A PENALTY, AND SUCH LIMITATION OF SERVICE PROVIDER'S LIABILITY SHALL APPLY NO MATTER HOW THE LOSS, DAMAGE, INJURY OR OTHER CONSEQUENCE OCCURS, EVEN IF DUE TO SERVICE PROVIDER'S NEGLIGENCE, ACTIVE OR OTHERWISE, BUT SHALL NOT APPLY IN THE EVENT OF GROSS NEGLIGENCE, OR WILLFUL OR INTENTIONAL MISCONDUCT ON THE PART OF SERVICE PROVIDER OR ITS EMPLOYEES OR AGENTS.

- b. Customer shall indemnify, defend, and hold harmless Service Provider, its respective successors and assigns, and its directors, professionals and employees from and against all claims, actions, liabilities, damages, losses, costs and expenses (including reasonable attorney's fees) asserted against Service Provider arising out of incidents or occurrences taking place or arising at Customer's location provided that any such Losses: i) occur due to Service Provider's compliance with Customer's directions and requests; and/or, ii) are: (a) attributable to bodily injury, sickness, disease or death or to damage to tangible property; and, (b) are not caused in any way through the negligence, willful misconduct or unlawful activity of Service Provider, or the failure of Service Provider to perform the Services.
 - c. Customer shall give written notice to Service Provider of any of its Losses or potential Losses arising out of the Services within thirty (30) days following notification of the occurrence giving rise to such Losses or potential Losses. No action to recover any Loss shall be instituted or maintained against Service Provider unless notice of such Loss shall have been given by Customer to Service Provider in the manner and form set forth herein. No action to recover for any Loss shall be instituted or maintained against Service Provider unless instituted not later than twelve (12) months following notification of the occurrence giving rise to such Loss.
 - d. **IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY SPECIAL, CONSEQUENTIAL, INCIDENTAL, PUNITIVE, OR EXEMPLARY DAMAGES OR LOSSES OF ANY KIND WHATSOEVER ARISING OUT OF THIS AGREEMENT OR THE PERFORMANCE OF THE SERVICES, REGARDLESS OF THE THEORY OF RECOVERY, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH LOSS OR DAMAGE OR IF SUCH LOSS COULD HAVE BEEN REASONABLY FORESEEN. NOTWITHSTANDING ANYTHING CONTAINED IN THIS AGREEMENT TO THE CONTRARY, SHOULD SERVICE PROVIDER BE FOUND LIABLE FOR ANY LOSSES HEREUNDER FOR ANY REASON, THE SOLE AND EXCLUSIVE REMEDY OF CUSTOMER IN ANY SITUATION, WHETHER IN CONTRACT OR TORT, OR OTHERWISE, SHALL BE LIMITED TO CUSTOMER'S ACTUAL AND DIRECT DAMAGES, AND SHALL IN NO EVENT EXCEED THE AMOUNTS INVOICED OVER THE PREVIOUS TWELVE (12) MONTH PERIOD AND PAID BY CUSTOMER TO SERVICE PROVIDER, SUCH AMOUNTS TO BE INCLUSIVE OF ANY DEFENSE COSTS.**
13. **Confidentiality.** The parties acknowledge and agree that they may receive certain confidential information from the other party, including without limitation, the programs, protocols, business or strategic plans of the other party, and will also possess information relating to this Agreement, including but not limited to the compensation paid to Service Provider hereunder (collectively, "Confidential Information"). The receiving party shall not at any time disclose the Confidential Information to any person, firm, partnership, corporation or other entity (other than employees, lenders, professional advisors, franchisees and subcontractors of the receiving party having a need to access the Confidential Information) for any reason whatsoever. Each party shall take actions necessary to ensure that its employees, lenders, professional advisors, franchisees and subcontractors having access to the Confidential Information do not disclose the Confidential Information. Confidential Information shall not include information which (i) was in the receiving party's possession prior to disclosure, (ii) is hereafter independently developed by the receiving party, (iii) lawfully comes into the possession of the receiving party, or (iv) is now or subsequently becomes, through no act or failure to act by the receiving party, part of the public domain. This Section 13 shall survive for a period of two (2) years from the expiration or termination of this Agreement, provided that the receiving party's obligations related to any Confidential Information that qualifies as a trade secret under applicable law shall remain in effect for such time that it remains a trade secret.
14. **Miscellaneous.**
- a. **Entire Agreement.** This Agreement shall constitute the entire agreement between the parties dealing with the subject matter hereof, and any prior understanding or representation of any kind preceding the date of this Agreement and dealing with the same subject matter shall not be binding upon either party, except to the extent incorporated in this Agreement.
 - b. **Non-Solicitation.** During the term of this Agreement and for a period of one year thereafter, Customer shall not directly or indirectly entice, encourage or make any offer to employ, to hire, or to contract with: (i) any current employee, agent, franchisee, or employee or agent of any franchisee of Franchisor; or (ii) any person who acted as an employee, agent, franchisee, or employee or agent of any franchisee of Franchisor within the prior year.
 - c. **Modification of Agreement.** Except as provided in Section 6 herein, any modification of this Agreement or additional obligation assumed by either party in connection with this Agreement shall be binding only if placed in

writing and signed by each party or an authorized representative of each party.

- d. **No Waiver.** Waiver of any provision of this Agreement or the performance or enforcement thereof shall not constitute a continuing waiver of such provision or a waiver of any other provision of this Agreement. Any such waiver must be in writing duly signed by the waiving party to be effective.
- e. **Independent Contractors.** The parties acknowledge that Service Provider, its employees and subcontractors, and Franchisor and their franchisees, employees and subcontractors are independent contractors providing Services to Customer, and nothing herein shall be deemed to constitute or be construed as making Franchisor or Service Provider, their employees, franchisees or their employees to be agents or employees of the Customer.
- f. **Binding Effect.** This Agreement shall bind and insure to the benefit of the respective heirs, personal representatives, successors, and assigns of the parties.
- g. **Governing Law.** This Agreement shall be governed by, construed, and enforced in accordance with the laws of Nebraska, without regard to its conflict of laws rules. Service Provider and Customer agree that any cause of action or litigation arising out of this Agreement shall be filed exclusively in federal or state court in Douglas County, Nebraska, and Franchisor, Service Provider and Customer irrevocably consent to the jurisdiction of such courts. If a Service Provider initiates an action against Client and Service Provider is not a party to such action, Service Provider may bring the action or litigation arising out of the Agreement in the federal or state court that is located closest to Service Provider's current office address.
- h. **Severability.** The invalidity of any portion of this Agreement will not and shall not be deemed to affect the validity of any other provision. If any provision of this Agreement is held to be invalid, the parties agree that the remaining provisions shall be deemed to be in full force and effect as if they had been executed by both parties subsequent to the expungement of the invalid provision.
- i. **Notices.** Any and all notices provided for herein shall be sufficient if given in writing and hand-delivered or sent by facsimile (with electronic confirmation), registered mail or certified mail to the address set forth for the applicable party on the first page of this Agreement, or such other address as a party may deliver to the other party in writing. Notice given by hand delivery shall be deemed given when delivered. Notice given by facsimile shall be deemed given on the next business day after such notice is sent. Notice given by registered or certified mail shall be deemed given on the third (3rd) day after such notice is sent.
- j. **Counterparts.** This Agreement may be executed in any number of counterparts, each of which shall be deemed to be an original, however all of which together shall constitute but one and the same instrument.
- k. **Survival.** Sections 1, 2, 3, 5, 3, 8, 10, 12, 13, 14(a), 14(g), and 14(l) shall survive the expiration or termination of this Agreement.
- l. **Force Majeure.** No party shall be liable for delays, nor defaults due to Acts of God or the public enemy, unusual circumstances including, but not limited to, strikes, riots, revolutions, wars, military actions, fires, floods, droughts, natural disasters, pandemics, active shooter events, snow storms, blizzards or other inclement weather, accidents, insurrections, lockouts, perils of the sea, stoppage of labor, or other events considered as "Force Majeure", or by any other unavoidable cause beyond such party's reasonable control and without its fault or negligence. Notwithstanding the foregoing, Service Provider shall not be responsible for additional expenses and costs incurred by it or Customer to provide Services pursuant to this Agreement as a result of any event of Force Majeure. All such additional expenses shall be the responsibility of Customer as an additional charge invoiced and paid by Customer as it is incurred, pursuant to the terms of the Billing section set forth above. Additionally, to the extent that Service Provider is unable to perform, or is delayed in performing, the Services due to a Force Majeure event, such nonperformance or delayed performance is not a breach of this Agreement nor cause for Customer's termination of this Agreement.
- m. **Assignment.** Except as otherwise provided herein, the rights of each party under this Agreement are personal to that party and may not be assigned or transferred to any other person, firm, corporation, or other entity without the prior, express, and written consent of the other party, which consent will not be unreasonably withheld.
- n. **Designation and Delegation of Services.**
 - 1. Franchisor will designate the performance of some or all of the Services to one or more of its franchisees, including without limitation the Service Provider(s) listed on the first page of this Agreement. Franchisor's franchisees may delegate the performance of Services.
 - 2. In the event that the Services contemplated in the Agreement are designated to a Service Provider, the Service Provider's signature is confirmation that such Services to be provided under this Agreement are the responsibility of the Service Provider.
 - 3. The Franchisor reserves the right in its sole discretion to designate a different bona fide franchisee as the Service Provider by providing the Customer with an addendum executed by the newly designated Service Provider (the "Replacement SP") pursuant to which the Replacement SP will agree to provide the Services